

17. 9:01 AM CASE NUMBER: C23-03011

CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWERS AND ATTENDANCE AT DEPOSITION OF SHASA CURL

FILED BY: MONTOYA, ANGEL

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Answers is **denied**.

Question 1: denied as to "why." Witness testified she did order Plaintiff to attend it. Witness justifiably took issue with the "defend the ADR contact." Therefore the form of the question "assumes facts not in evidence," because she cannot give an explanation for something she took issue with doing in the first place.

Question 2: denied. Witness answered she gave an order to attend it, but justifiably took issue with the word "defend." Burden is on propounder of question to ask a question that is intelligible.

Question 3: denied. Same reasoning as Question 2.

Question 4: denied. Assumes facts. Witness took issue with the "defend" verbiage.

Question 5: denied. Witness answered she does not recall.

The Plaintiff's request for appointment of discovery referee is denied at this time.

Pursuant to Section 2025.480(j) of the Code of Civil Procedure, the court awards sanctions against Plaintiff's counsel, Steven Harvey in favor of Defense in the amount of \$3,087.50. The sanctions must be paid within 15 calendar days of service of notice of entry of this order.

18. 9:01 AM CASE NUMBER: C25-01314

CASE NAME: GABRIEL SUTTON VS. JOSEPH BALLESTEROS

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR

PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: SUTTON, GABRIEL

TENTATIVE RULING:

Plaintiff's motion to compel production of documents is granted. The court finds the motion was not untimely because the Defendant's objections were served on January 16, 2026, and 45 days from that date is March 2, 2026. The motion was initially filed on February 25, 2026, well within the 45-day period.

The court takes judicial notice of its own file and notes this lawsuit currently is not stayed due to arbitration. The Defendants filed their Answer on October 25, 2025 and did not file a motion to compel arbitration until May 13, 2026. The Defendants' motion to compel arbitration was filed 149 days after they were initially served with the Request for Production of Documents and 77 days after the Plaintiff's motion to compel was originally filed. The hearing on the motion to compel arbitration is set for October 9, 2026.

Defendants assert that the court lacks jurisdiction over the discovery dispute while their motion to compel arbitration is pending. The court disagrees. At this time, there is no stay of litigation in place. The court does not lack jurisdiction to rule on this motion to compel discovery. At this time there is no legal bar to Defendant's compliance with discovery.

Defendants assert they are concerned about waiving their right to compel arbitration if they respond to discovery. The facts in the case they cite as precedent, *Bower v InterCon Security Systems, Inc.* (2014) 232 Cal.App. 4th 1035 differ from the instant case. There the Defendant not only responded to plaintiff's discovery, it propounded its own discovery including 102 document requests pertaining to a putative class of security guards. *Bower*, 232 Cal.App. 4th at 1040. The trial court held Defendant "waived the right to arbitrate by propounding and responding to class discovery." *Bower*, 232 Cal.App. 4th at 1041. The trial court in *Bower* had surmised that the defendant had "declined to compel arbitration at the outset as a 'tactical' decision," and focused on the defendant's propounding and responding to discovery which was inconsistent with arbitration. *Bower*, 232 Cal.App. 4th at 1041. Defendants here are refusing to comply with discovery addressed to them and have not propounded

discovery of their own.

The court finds that the other defendant's objections are boilerplate, e.g., relevance, oppressive, harassing and unduly burdensome, and overrules them. To the extent any privilege is asserted Defendants have failed to produce a privilege log. Any objections based on privacy may be addressed by a protective order.

The court finds that Defendants acted with substantial justification, however, and declines to award sanctions. Defendants are ordered to produce documents and code-compliant responses within 20 calendar days of service of notice of entry of this order.

Issue Conferences

19. 10:00 AM CASE NUMBER: C26-01529
CASE NAME: OAK HILL TERRACE HOMEOWNERS ASSOCIATION VS. LINDA TAYLOR-RUIZ
HEARING IN RE: PERMANENT INJUNCTION SET BY DEPT ALL PARTIES TO APPEAR IN PERSON.
FILED BY:

TENTATIVE RULING:

Parties to Appear.